

HOUSE No. 2041

The Commonwealth of Massachusetts

PRESENTED BY:

David T. Vieira

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect victims of stalking in violation of harassment prevention orders.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>1/14/2025</i>

HOUSE No. 2041

By Representative Vieira of Falmouth, a petition (accompanied by bill, House, No. 2041) of David T. Vieira for legislation to protect victims of stalking in violation of harassment prevention orders. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect victims of stalking in violation of harassment prevention orders.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 7 of chapter 209A of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting, after the first sentence in the second paragraph,
3 the following sentence:- The appropriate law enforcement agency responsible for notice to the
4 defendant shall notify the victim when a temporary or permanent abuse prevention order: (i) has
5 been successfully served; (ii) has not been successfully served within 12 hours of receipt of the
6 order from the court, and every 24 hours thereafter until service is complete or the court orders
7 otherwise, and the effect of non-service on the order's validity; or (iii) has expired or otherwise
8 become ineffective.

9 SECTION 2. Section 9 of chapter 258E of the General Laws, as so appearing, is hereby
10 amended by inserting, after the first sentence in the second paragraph, the following sentence:
11 The appropriate law enforcement agency responsible for notice to the defendant shall notify the
12 victim when a temporary or permanent harassment prevention order: (i) has been successfully

13 served; (ii) has not been successfully served within 12 hours of receipt of the order from the
14 court, and every 24 hours thereafter until service is complete or the court orders otherwise, and
15 the effect of non-service on the order's validity; or (iii) has expired or otherwise become
16 ineffective.

17 SECTION 3. Section 43 of chapter 265 of the General Laws, as so appearing, is amended
18 by inserting, in line 21, after the word "vacate" the following words:- , harassment prevention.

19 SECTION 4. Said section 43 of said chapter 265 is hereby further amended by inserting,
20 in line 26, after the words "two hundred and nine C" the following words:- ;or sections three,
21 five, or six of chapter two hundred and fifty-eight E;